

Software Development Agreement

Contract ID: CNT-2025-0147

Date: March 15, 2025

Between: Meridian Holdings Group ("Client") and ByteForge Solutions Ltd ("Developer")

1. Engagement Overview

The Client engages the Developer to design, develop, and deploy a custom Customer Relationship Management (CRM) system. The Developer shall provide all necessary personnel, tools, and infrastructure to complete the project according to the specifications set forth in this agreement.

2. Scope of Work

2.1 Project Description

The Developer shall build a cloud-based CRM system with the following modules:

- Customer database and contact management
- Sales pipeline and opportunity tracking
- Marketing campaign management and analytics
- Customer support ticketing system
- Reporting and business intelligence dashboard
- Mobile application (iOS and Android)

2.2 Technical Requirements

- Cloud-hosted on Developer's preferred infrastructure provider
- RESTful API architecture
- Responsive web interface
- Integration with Client's existing ERP system (SAP)
- Support for minimum 5,000 concurrent users

2.3 Deliverables

1. System architecture and design documents
2. Fully functional CRM application
3. API documentation
4. User training materials

5. Source code and deployment scripts
6. 12 months of post-launch support

3. Timeline

Phase	Deliverable	Duration
Phase 1	Requirements and design	6 weeks
Phase 2	Core development	16 weeks
Phase 3	Integration and testing	8 weeks
Phase 4	User acceptance testing	4 weeks
Phase 5	Deployment and go-live	2 weeks

Total project duration: 36 weeks from contract execution.

4. Pricing and Payment Terms

4.1 Total Contract Value

The total fixed price for the project is \$1,250,000 USD.

4.2 Payment Schedule

Milestone	Amount	Due Date
Contract signing	\$312,500 (25%)	Upon execution
Phase 1 completion	\$125,000 (10%)	Upon delivery
Phase 2 completion	\$375,000 (30%)	Upon delivery
Phase 3 completion	\$250,000 (20%)	Upon delivery
Go-live	\$187,500 (15%)	Upon deployment

4.3 Payment Terms

All invoices are payable within 120 days of receipt of a valid invoice. Late payments shall accrue interest at a rate of 1.5% per month.

5. Developer Personnel

5.1 Team Composition

The Developer shall provide the following team:

- 1 Project Manager
- 2 Senior Software Engineers
- 4 Software Developers
- 1 UX/UI Designer
- 2 QA Engineers
- 1 DevOps Engineer

5.2 Personnel Changes

The Developer may substitute personnel at its discretion provided that replacements have equivalent qualifications. The Client shall be notified of personnel changes within 14 business days.

5.3 Subcontracting

The Developer may subcontract portions of the work to third parties without requiring prior approval from the Client. The Developer remains responsible for the quality and timeliness of all subcontracted work.

6. Intellectual Property

6.1 Ownership

Upon full payment, the Client shall receive a perpetual, non-exclusive license to use the CRM system. The Developer retains all intellectual property rights in the underlying code, frameworks, and tools developed during the project.

6.2 Developer Tools

The Developer may reuse any code, modules, libraries, or tools developed during this engagement in future projects for other clients without restriction.

6.3 Open Source Components

The Developer may incorporate open source software components at its discretion. A list of open source components will be provided upon project completion.

7. Warranties

7.1 Functional Warranty

The Developer warrants that the CRM system will function substantially in accordance with the specifications for a period of 90 days following deployment.

7.2 No Other Warranties

EXCEPT AS EXPRESSLY SET FORTH IN THIS AGREEMENT, THE DEVELOPER MAKES NO WARRANTIES, EXPRESS OR IMPLIED, INCLUDING WITHOUT LIMITATION ANY IMPLIED WARRANTIES OF MERCHANTABILITY OR FITNESS FOR A PARTICULAR PURPOSE.

8. Limitation of Liability

The Developer's total liability under this agreement shall not exceed the amount paid by the Client in the 6 months preceding the claim. In no event shall the Developer be liable for any indirect, incidental, consequential, special, or punitive damages.

9. Term and Termination

9.1 Term

This agreement shall remain in effect until all deliverables have been completed and the 12-month support period has ended.

9.2 Termination for Convenience

Either party may terminate this agreement with 30 days written notice. Upon termination, the Client shall pay for all work completed to date.

9.3 Termination for Cause

Either party may terminate immediately upon material breach that remains uncured for 60 days after written notice.

10. Confidentiality

10.1 Confidential Information

Both parties agree to treat as confidential any proprietary information disclosed during the engagement. This obligation continues for 1 year following termination of this agreement.

10.2 Exceptions

Confidentiality obligations do not apply to information that is publicly available, independently developed, or received from a third party without restriction.

11. Indemnification

The Developer shall indemnify the Client against any third-party claims arising from the Developer's negligence or willful misconduct. The Client shall indemnify the Developer against any third-party claims arising from the Client's use of the CRM system.

12. General Provisions

12.1 Governing Law

This agreement shall be governed by the laws of the State of Delaware.

12.2 Dispute Resolution

Any disputes shall be resolved through binding arbitration in Wilmington, Delaware.

12.3 Entire Agreement

This agreement constitutes the entire agreement between the parties. No modifications shall be effective unless in writing signed by both parties.

IN WITNESS WHEREOF, the parties have executed this agreement as of the date first written above.

For Meridian Holdings Group

For ByteForge Solutions Ltd